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ACCURATE BACKGROUND, LLC

UNITED STATES DISTRICT COURT

SOUTHERN DISTRICT OF CALIFORNIA

JUSTIN RANGEL,

Plaintiff,

v.

ACCURATE BACKGROUND, LLC; and DOES 1 to 50, inclusive,

Defendants.

Case No. 3:25-cv-01983-AJB-MMP

Honorable Anthony J. Battaglia

DEFENDANT ACCURATE BACKGROUND, LLC'S ANSWER AND AFFIRMATIVE AND OTHER DEFENSES TO PLAINTIFF'S COMPLAINT

Complaint Filed: August 1, 2025

Defendant ACCURATE BACKGROUND, LLC, by its attorneys and pursuant to Rules 8 and 12 of the Federal Rules of Civil Procedure, answers Plaintiff's Complaint and asserts its affirmative and other defenses as follows:

INTRODUCTION

COMPLAINT ¶1:

This action arises from the inaccurate and incomplete investigative consumer report (the "Report") prepared by Defendant Accurate in connection with Plaintiff's job application.

ANSWER:

Accurate admits only that Plaintiff purports to bring this action in connection with a background report prepared regarding Plaintiff at the request of Sharp Healthcare. Accurate denies the remaining allegations in Paragraph No. 1 of the Complaint.

COMPLAINT ¶2:

Despite Plaintiff's submission of documentation, the Report continued to misstate his background history, failed to reflect accurate information, and ultimately caused the revocation of an employment opportunity.

ANSWER:

Accurate denies the allegations in Paragraph No. 2 of the Complaint.

COMPLAINT ¶3:

Upon information and belief, Accurate failed to follow reasonable procedures to assure maximum possible accuracy of the information it reported, and Defendants ignored their obligations under federal and California consumer protection statutes by relying on this inaccurate report, and in their actions once Plaintiff disputed the Report.

ANSWER:

Accurate denies the allegations in Paragraph No. 3 of the Complaint.

COMPLAINT ¶4:

Specifically, Defendants violated the Fair Credit Reporting Act ("FCRA"), 15 U.S.C. § 1681 *et seq*., and the California Investigative Consumer Reporting Agencies Act ("ICRAA"), Cal. Civ. Code § 1786 *et seq*., by failing to maintain procedures to assure maximum possible accuracy, and by failing to conduct a reasonable reinvestigation upon receiving notice of dispute.

ANSWER:

Accurate denies the allegations in Paragraph No. 4 of the Complaint.

COMPLAINT ¶5:

Defendants also violated the FCRA and ICRAA by procuring and using an inaccurate investigative consumer report in its employment decision-making process, and by failing to provide Plaintiff with a meaningful opportunity to respond before taking adverse action.

ANSWER:

Accurate denies the allegations in Paragraph No. 5 of the Complaint in their entirety, and specifically denies that it procured any consumer report regarding Plaintiff, denies that it made or participated in any employment decision regarding Plaintiff, and denies that it took any adverse action against Plaintiff.

COMPLAINT ¶6:

As a result of Defendants' conduct, Plaintiff was denied employment, suffered financial loss, and experienced emotional distress and reputational harm.

ANSWER:

Accurate denies the allegations in Paragraph No. 6 of the Complaint.

COMPLAINT ¶7:

Plaintiff now brings this action for violations of (1) the ICRAA, (2) the FCRA, (3) California's Unfair Competition Law, Bus. & Prof. Code § 17200 et seq., and seeks actual, statutory, and punitive damages, restitution, and all other relief authorized by law.

ANSWER:

Accurate admits only that Plaintiff purports to bring this action pursuant to the Fair Credit Reporting Act, 15 U.S.C. § 1681 *et seq.* ("FCRA"), California's Investigative Consumer Reporting Agencies Act, Cal. Civ. Code § 1786.10 *et seq.* ("ICRAA"), and California's Unfair Competition Law, Bus & Prof. Code § 17200 *et seq.* ("UCL"). Accurate denies that it violated the FCRA, the ICRAA, the UCL, or any other law, and further denies that Plaintiff is entitled to any relief whatsoever. Accurate denies the remaining allegations in Paragraph No. 7 of the Complaint.

JURISDICTION AND VENUE

COMPLAINT ¶8:

Jurisdiction of this Court arises pursuant to 28 U.S.C. § 1331 due to federal causes of action under 15 U.S.C. § 1681, and under 28 U.S.C. § 1332 due to diversity of citizenship.

ANSWER:

Accurate admits only that this Court has jurisdiction over Plaintiff's FCRA claims pursuant to 28 U.S.C. § 1331 and 15 U.S.C. § 1681p. Accurate denies the remaining allegations in Paragraph No. 8 of the Complaint.

COMPLAINT ¶9:

Jurisdiction is proper in this Court because the amount in controversy exceeds the jurisdictional minimum of this Court, and this case involves the violation of Federal statutes.

ANSWER:

Accurate admits only that this Court has jurisdiction over Plaintiff's FCRA claims pursuant to 28 U.S.C. § 1331 and 15 U.S.C. § 1681p. Accurate denies the remaining allegations in Paragraph No. 9 of the Complaint.

COMPLAINT ¶10:

Because all Defendants conduct business within the State of California, personal jurisdiction is established.

ANSWER:

Accurate admits that that it does business in the State of California. Accurate denies the remaining allegations in Paragraph No. 10 of the Complaint.

COMPLAINT ¶11:

Venue is proper pursuant to 28 U.S.C. § 1391 for the following reasons: (i) Plaintiff resides in this judicial district; (ii) the conduct complained of herein occurred within this judicial district; and (iii) Defendant conducted business within this judicial district at all times relevant.

ANSWER:

Accurate admits that venue is proper in this district. Accurate denies the remaining allegations in Paragraph No. 11 of the Complaint.

PARTIES

COMPLAINT ¶12:

Plaintiff JUSTIN RANGEL is a natural person and resident of San Diego County, California.

ANSWER:

Accurate admits that Plaintiff is a "natural person." Accurate is without knowledge or information sufficient to form a belief as to Plaintiff's current residence. Accurate denies any remaining allegations in Paragraph No. 12 of the Complaint.

COMPLAINT ¶13:

Plaintiff is a "consumer" as that term is defined by the FCRA and the ICRAA.

ANSWER:

Accurate admits that Plaintiff is a "consumer" as that term is defined by 15 U.S.C. § 1681a(c) and Cal. Civ. Code § 1786.2(b). Accurate denies any remaining allegations in Paragraph No. 13 of the Complaint.

COMPLAINT ¶14:

Defendant ACCURATE BACKGROUND, LLC is an investigative consumer reporting agency as defined by the FCRA and ICRAA with its principal address of business in 200 SPECTRUM CENTER DRIVE, SUITE 1100 IRVINE, CA 92618.

ANSWER:

Accurate admits that it provides certain services as a "consumer reporting agency," as that phrase is defined in the FCRA, and admits that it provides certain services as an "investigative consumer reporting agency," as that term is defined by Cal. Civ. Code §1786.2(d), and limited to those activities only. Accurate further admits that its principal place of business is at the address identified in Paragraph No. 14 of the Complaint. Accurate denies the remaining allegations in Paragraph No. 14 of the Complaint.

COMPLAINT ¶15:

The true names and capacities, whether individual, corporate (including officers and directors thereof), associate or otherwise of Defendants sued herein as Does 1 through 50, inclusive, are unknown to Plaintiff, who therefore sues these Defendants by such fictitious names, pursuant to the CCP § 474. Plaintiff is informed and believes, and thereon alleges that each Named Defendant and each Defendant designated as a Doe is involved in or is in some manner responsible as an officer, director, managing agent, principal, beneficiary, agent, co-conspirator, joint venturer, alter ego, third-party beneficiary, or otherwise, for the agreements, transactions, events and/or acts hereinafter described, and thereby proximately caused injuries and damages to Plaintiff. Plaintiff requests that when the true names and capacities of these DOE Defendants are

ascertained, they may be inserted in all subsequent proceedings, and that this action may proceed against them under their true names.

ANSWER:

Accurate denies the allegations in Paragraph No. 15 of the Complaint in their entirety.

FACTUAL ALLEGATIONS

COMPLAINT ¶16:

Plaintiff is an experienced computed tomography ("CT") technologist residing in San Diego, California.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 16 of the Complaint.

COMPLAINT ¶17:

In or around early May 2025, Plaintiff applied for a CT technologist position at Sharp Hospital ("Sharp") in San Diego, California. As part of the pre-employment process, Plaintiff was required to undergo a background check.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 17 of the Complaint.

COMPLAINT ¶18:

Defendant Accurate Background, Inc. ("Accurate") was retained to perform this background check.

ANSWER:

Accurate admits that, on May 15, 2025, Sharp Healthcare ordered a background report regarding Plaintiff from Accurate. Accurate denies any remaining allegations in Paragraph No. 18 of the Complaint.

COMPLAINT ¶19:

Plaintiff's employment was contingent upon successful completion of the background screening. His anticipated start date was May 21, 2025.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 19 of the Complaint.

COMPLAINT ¶20:

On or around May 14-15, 2025, Sharp's human resources representative informed Plaintiff that his start date would be delayed because the background report had not yet been completed.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 20 of the Complaint.

COMPLAINT ¶21:

On or around May 20, 2025, Sharp accessed the finalized background report prepared by Accurate. The report erroneously associated Plaintiff with criminal convictions from Maricopa County, Arizona, involving a person named Justin Ray Rangel—who shares Plaintiff's first and last name, but has a different middle name and date of birth.

ANSWER:

Accurate admits that it completed a background report regarding Plaintiff at the request of Sharp Healthcare on May 20, 2025. Accurate states that the referenced report is the best evidence of its contents and denies any allegations in Paragraph No. 21 of the Complaint that are inconsistent with the referenced report. Accurate denies the remaining allegations in Paragraph No. 21 of the Complaint.

COMPLAINT ¶22:

Plaintiff had not been arrested or convicted of any crime, had no criminal record, and truthfully disclosed on pre-screening forms that he had no such history.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 22 of the Complaint.

COMPLAINT ¶23:

Despite the obvious discrepancy in middle names and lack of a match on full date of birth, Accurate included the Arizona criminal records in Plaintiff's report without reasonable procedures to ensure maximum possible accuracy as required by law.

ANSWER:

Accurate denies the allegations in Paragraph No. 23 of the Complaint.

COMPLAINT ¶24:

Plaintiff was not provided a copy of the background check prior to its delivery to Sharp. He only learned of the erroneous reporting after Sharp contacted him directly about it, approximately two weeks after the report was finalized.

ANSWER:

Accurate denies the allegations in Paragraph No. 24 of the Complaint.

COMPLAINT ¶25:

Plaintiff immediately disputed the report with Accurate on May 30, 2025. Accurate acknowledged the dispute and initiated a reinvestigation, but refused to provide Plaintiff a copy of the original report during the pendency of the dispute, denying him the ability to fully understand or respond to the allegations.

ANSWER:

Accurate admits that Plaintiff contacted Accurate on May 30, 2025 and disputed information contained in his background report. Accurate denies the remaining allegations in Paragraph No. 25 of the Complaint.

COMPLAINT ¶26:

Due to Accurate's reporting error, Plaintiff's employment with Sharp was delayed by approximately four weeks. Plaintiff did not begin working until mid-to-late June 2025.

ANSWER:

Accurate denies the allegations in the first sentence of Paragraph No. 26 of the Complaint. Accurate lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph No. 26 of the Complaint.

COMPLAINT ¶27:

Plaintiff's hourly wage as a CT technologist at Sharp is approximately $70 per hour, inclusive of shift differentials. As a result of the delay, Plaintiff lost approximately 160 hours of work, or about $11,200 in gross wages.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in the first sentence of Paragraph No. 27 of the Complaint. Accurate denies the remaining allegations in Paragraph No. 27 of the Complaint.

COMPLAINT ¶28:

Plaintiff also suffered emotional distress, including anxiety, embarrassment, and financial strain, as a result of the delay in employment and the stigmatizing nature of the false criminal record.

ANSWER:

Accurate denies the allegations in Paragraph No. 28 of the Complaint.

COMPLAINT ¶29:

Accurate ultimately removed the inaccurate criminal records from the report, but not until after Plaintiff's start date was significantly postponed and after he took multiple steps to dispute and correct the record.

ANSWER:

Accurate admits that it prepared an amended report regarding Plaintiff. Accurate denies the remaining allegations in Paragraph No. 29 of the Complaint.

COMPLAINT ¶30:

Accurate failed to employ and follow reasonable procedures to assure maximum possible accuracy in the preparation of Plaintiff's investigative consumer report, including failing to match on full name and full date of birth, and inappropriately associating criminal records of another individual with Plaintiff.

ANSWER:

Accurate denies the allegations in Paragraph No. 30 of the Complaint.

COMPLAINT ¶31:

At no point did Accurate notify Plaintiff that a report containing adverse information had been furnished to a third party before providing him an opportunity to review and dispute its contents, in violation of the law.

ANSWER:

Accurate denies the allegations in Paragraph No. 31 of the Complaint.

ACTUAL DAMAGES

COMPLAINT ¶32:

As a direct and proximate result of Defendants' conduct, Plaintiff lost a valuable employment opportunity and suffered emotional distress, reputational harm, and financial damages. All such damages have been suffered in the past, are continuing to be suffered, and such damages will continue in the future.

ANSWER:

Accurate denies the allegations in Paragraph No. 32 of the Complaint.

FIRST CAUSE OF ACTION

Violation of the Investigative Consumer Reporting Agencies Act (ICRAA)

[Against All Defendants]

COMPLAINT ¶33:

Plaintiff hereby re-alleges and incorporates by reference each and every allegation stated in the preceding paragraphs of the Complaint as though set forth fully herein.

ANSWER:

Accurate restates its answers to Paragraph Nos. 1 through 32 as its answer to Paragraph No. 33 of the Complaint.

COMPLAINT ¶34:

Plaintiff is a "consumer" as defined by Cal. Civ. Code § 1786.2(c). Accurate is an "investigative consumer reporting agency" as defined by Cal. Civ. Code § 1786.2(d).

ANSWER:

Accurate admits that Plaintiff is a "consumer" as that term is defined by Cal. Civ. Code § 1786.2(b). Accurate further admits that it provides certain services as an "investigative consumer reporting agency," as that term is defined by Cal. Civ. Code § 1786.2(d), as limited to those activities only. Accurate denies the remaining allegations in Paragraph No. 34 of the Complaint.

COMPLAINT ¶35:

The Report constitutes an "investigative consumer report" under Cal. Civ. Code § 1786.2(f), as it was used for employment purposes and included information on Plaintiff's character, general reputation, and mode of living obtained through personal interviews or public records.

ANSWER:

Accurate admits it prepared a background report on Plaintiff at the request of Sharp Healthcare. Accurate denies the remaining allegations in Paragraph No. 35 of the Complaint.

COMPLAINT ¶36:

Defendants, and each of them, willfully and/or negligently violated the ICRAA by engaging in one or more of the following acts or omissions, without limitation:

a. Failing to obtain Plaintiff's clear and unambiguous written authorization prior to procuring or causing to be procured an investigative consumer report;

b. Failing to provide proper disclosures to Plaintiff, in a standalone and conspicuous written document, regarding the procurement of an investigative consumer report;

c. Failing to provide Plaintiff with a copy of the investigative consumer report prior to taking adverse action, including but not limited to denial of employment, termination, suspension, demotion, or other negative employment-related decisions;

d. Taking adverse action against Plaintiff based on information in an investigative consumer report without providing sufficient notice, a reasonable opportunity to respond, or a meaningful explanation of the decision;

e. Providing, furnishing, or using inaccurate, outdated, or misleading information in the investigative consumer report, including but not limited to information that was legally prohibited, incomplete, or unverifiable at the time of use;

f. Failing to implement and maintain reasonable procedures to ensure the maximum possible accuracy of the investigative consumer report furnished concerning Plaintiff;

g. Failing to conduct a timely and adequate reinvestigation after Plaintiff disputed the completeness or accuracy of information contained in the investigative consumer report;

h. Failing to provide required notices to Plaintiff regarding Plaintiff's rights under the ICRAA;

i. Failing to certify or obtain necessary certifications related to the purpose and use of the investigative consumer report;

j. Engaging in any other act or omission that constitutes a violation of the ICRAA under California law.

ANSWER:

Accurate denies the allegations in Paragraph No. 36 of the Complaint.

COMPLAINT ¶37:

Each of the above-listed acts and omissions independently constitutes a violation of the ICRAA. Plaintiff is informed and believes, and thereon alleges, that Defendants' violations were knowing, intentional, and willful. In the alternative, Defendants acted negligently and with reckless disregard for Plaintiff's rights.

ANSWER:

Accurate denies the allegations in Paragraph No. 37 of the Complaint.

COMPLAINT ¶38:

As a direct and proximate result of Defendants' violations of the ICRAA, Plaintiff has suffered harm, including but not limited to loss of employment opportunities, reputational damage, emotional distress, and other actual damages in an amount to be proven at trial.

ANSWER:

Accurate denies the allegations in Paragraph No. 38 of the Complaint.

COMPLAINT ¶39:

Accurate violated Cal. Civ. Code § 1786.20(b) by failing to maintain reasonable procedures to ensure the maximum possible accuracy of the information contained in the Report. The Report included materially inaccurate, incomplete, and unverifiable

employment information that should not have appeared in a report used to evaluate Plaintiff's suitability for employment.

ANSWER:

Accurate denies the allegations in Paragraph No. 39 of the Complaint.

COMPLAINT ¶40:

Accurate also violated Cal. Civ. Code § 1786.24 by failing to conduct a reasonable reinvestigation after receiving Plaintiff's written dispute. Accurate's reinvestigation process resulted in no meaningful corrections.

ANSWER:

Accurate denies the allegations in Paragraph No. 40 of the Complaint, and specifically states that it prepared an amended report regarding Plaintiff, as alleged by Plaintiff in Paragraph No. 29 of the Complaint.

COMPLAINT ¶41:

As a direct and proximate result of Defendants' violations of the ICRAA, Plaintiff suffered actual damages including loss of employment opportunity, emotional distress, reputational harm, and financial hardship.

ANSWER:

Accurate denies the allegations in Paragraph No. 41 of the Complaint.

COMPLAINT ¶42:

Defendants' violations were willful and/or reckless, entitling Plaintiff to statutory damages, actual damages, punitive damages, attorney's fees, and costs pursuant to the ICRAA. Alternatively, Plaintiff alleges that Defendants' conduct was negligent, entitling Plaintiff to recover under the ICRAA.

ANSWER:

Accurate denies the allegations in Paragraph No. 42 of the Complaint.

SECOND CAUSE OF ACTION

Violation of the Fair Credit Reporting Act (FCRA)

[Against All Defendants]

COMPLAINT ¶43:

Plaintiff hereby alleges and incorporates by reference each and every allegation stated in the preceding paragraphs of the Complaint as though set forth fully herein.

ANSWER:

Accurate restates its answers to Paragraph Nos. 1 through 42 as its answer to Paragraph No. 43 of the Complaint.

COMPLAINT ¶44:

Plaintiff is a "consumer" as defined by 15 U.S.C. § 1681a(c). Defendants are "consumer reporting agencies" and/or "persons" as defined by 15 U.S.C. §§ 1681a(f) and (b).

ANSWER:

Accurate admits that Plaintiff is a "consumer" as that term is defined by 15 U.S.C. § 1681a(c). Accurate further admits that it provides certain services as a "consumer reporting agency," as that term is defined by 15 U.S.C. § 1681a(f), and as limited to those activities only. Accurate denies the remaining allegations in Paragraph No. 44 of the Complaint.

COMPLAINT ¶45:

The background check report at issue constitutes a "consumer report" and/or "investigative consumer report" as defined by 15 U.S.C. §§ 1681a(d) and (e), as it was used for employment purposes and contained information bearing on Plaintiff's personal characteristics, character, reputation, or mode of living.

ANSWER:

Accurate admits it prepared a background report on Plaintiff at the request of Sharp Healthcare, and further admits that the report is a "consumer report" as defined in the FCRA. Accurate denies the remaining allegations in Paragraph No. 35 of the Complaint.

COMPLAINT ¶46:

Defendants, and each of them, violated the FCRA by engaging in one or more of the following acts or omissions, without limitation:

a. Failing to obtain Plaintiff's proper written authorization before procuring or causing to be procured a consumer report for employment purposes;

b. Failing to provide Plaintiff with clear, conspicuous, and stand-alone written disclosures prior to the procurement of a consumer report;

c. Failing to provide Plaintiff with a copy of the consumer report and a summary of rights before taking adverse action based on that report;

d. Taking adverse action against Plaintiff without providing adequate pre-adverse and post-adverse action notice as required by law;

e. Furnishing or using inaccurate, incomplete, misleading, outdated, or unverifiable information in the consumer report;

f. Failing to follow reasonable procedures to assure maximum possible accuracy of the information contained in Plaintiff's consumer report;

g. Failing to maintain adequate internal controls, training, or oversight to ensure compliance with FCRA obligations;

h. Failing to properly verify the accuracy of information in Plaintiff's consumer report after receiving a dispute from Plaintiff;

i. Failing to conduct a timely, reasonable, or good-faith reinvestigation of disputed information;

j. Re-reporting previously disputed and uncorrected information without proper certification or reinvestigation;

k. Failing to block, suppress, or otherwise correct information identified as resulting from fraud or identity theft;

l. Using or furnishing a consumer report for an impermissible purpose, or without a legitimate business need as required by the FCRA;

m. Failing to properly certify the purpose for which the report was obtained or used;

n. Failing to make required disclosures to Plaintiff about the source and use of the report;

o. Engaging in any other act or omission that constitutes a violation of Plaintiff's rights under the FCRA.

ANSWER:

Accurate denies the allegations in Paragraph No. 46 of the Complaint.

COMPLAINT ¶47:

As a direct and proximate result of the above violations, Plaintiff suffered actual damages, including but not limited to denial of employment, lost income, emotional distress, reputational harm, and other economic and non-economic losses.

ANSWER:

Accurate denies the allegations in Paragraph No. 47 of the Complaint.

COMPLAINT ¶48:

Each of the above-listed acts and omissions constitutes a separate and independent violation of the FCRA. Defendants' violations were willful and/or reckless, entitling Plaintiff to actual damages, statutory damages, punitive damages, attorney's fees, and costs pursuant to 15 U.S.C. §§ 1681n and 1681o. Alternatively, Plaintiff alleges that Defendants' conduct was negligent, entitling Plaintiff to recover under the FCRA.

ANSWER:

Accurate denies the allegations in Paragraph No. 48 of the Complaint.

THIRD CAUSE OF ACTION

Violation of the Cal. Bus. & Prof. Code § 17200 *et seq*.

[Against All Defendants]

COMPLAINT ¶49:

Plaintiff hereby alleges and incorporates by reference each and every allegation stated in the preceding paragraphs of the Complaint as though set forth fully herein.

ANSWER:

Accurate restates its answers to Paragraph Nos. 1 through 48 as its answer to Paragraph No. 49 of the Complaint.

COMPLAINT ¶50:

Pursuant to Cal. Bus. & Prof. Code § 17200 *et seq*, Defendants were obligated to refrain from engaging in unfair business practices, including the unfair business practice of producing inaccurate and incomplete consumer background report about Plaintiff in violation of applicable California and Federal laws.

ANSWER:

Accurate states that the allegations in Paragraph No. 50 of the Complaint consist entirely of legal conclusions, which require no response. To the extent an answer is required, Accurate denies the allegations in Paragraph No. 50 of the Complaint, and specifically denies that it violated the UCL.

COMPLAINT ¶51:

It is the policy of this State to enforce consumer background reporting laws, and to protect those businesses who comply with the law from losing competitive advantage to other businesses who fail to comply.

ANSWER:

Accurate states that the allegations in Paragraph No. 50 of the Complaint consist entirely of characterizations of legislative intent, which require no response. To the

extent an answer is required, Accurate denies the allegations in Paragraph No. 50 of the Complaint.

COMPLAINT ¶52:

Defendant has engaged in the unfair business practices of consistently and knowingly committing the violations against Plaintiff as alleged in this complaint.

ANSWER:

Accurate denies the allegations in Paragraph No. 52 of the Complaint.

COMPLAINT ¶53:

Defendants' conduct described herein constitutes an unlawful and unfair business practice. On information and belief, Defendants systematically apply internal policies that prevent correction of inaccurate consumer report information in violation of the law.

ANSWER:

Accurate denies the allegations in Paragraph No. 53 of the Complaint.

COMPLAINT ¶54:

Plaintiff is a "person" within the meaning of the Business & Professions Code § 17204, and thus possesses standing to bring this suit for injunctive relief and restitution. As alleged in this Complaint, Plaintiff has suffered injury in fact from the unfair business practices of Defendant as required by Business & Professions Code § 17204.

ANSWER:

Accurate states that the allegations in Paragraph No. 54 of the Complaint consist entirely of legal conclusions, which require no response. To the extent an answer is required, Accurate denies the allegations in Paragraph No. 54 of the Complaint, denies that it violated the UCL, and denies that Plaintiff is entitled to injunctive relief or any other relief from Accurate.

PRAYER FOR RELIEF

1. For declaration that Defendants' practices violate the law;

2. For actual, compensatory, special, and general damages in an amount according to proof;

3. For statutory penalties and punitive damages for each separate statutory violation where allowed by statute;

4. For pre- and post- judgment interest;

5. For reasonable attorney's fees and costs;

6. For injunctive relief as applicable; and

7. For such other and further relief as the Court deems just and proper.

ANSWER:

Plaintiff's allegations constitute a prayer for relief requiring neither an admission nor a denial by Accurate. To the extent an answer is required, Accurate denies that Plaintiff is entitled to any relief whatsoever.

DEMAND FOR JURY TRIAL

ANSWER:

Accurate admits that Plaintiff demands a trial by jury. Accurate denies that Plaintiff is entitled to a trial by jury on any claim asserted in the Complaint.

AFFIRMATIVE AND OTHER DEFENSES

Without assuming the burden of proof or production where it otherwise rests with Plaintiff, Accurate asserts the following affirmative and other defenses to the Complaint, and reserves its right to raise additional defenses as may be discovered during the course of these proceedings.

FIRST DEFENSE

Plaintiff's Complaint fails to state a claim upon which relief may be granted because the Complaint does not sufficiently specify or reference those sections of the FCRA and ICRAA under which claims are being asserted.

SECOND DEFENSE

In accordance with the FCRA and the ICRAA, Accurate followed reasonable procedures to assure maximum possible accuracy in the information concerning Plaintiff in the consumer report it prepared.

THIRD DEFENSE

In accordance with the FCRA and the ICRAA, Accurate conducted a reasonable reinvestigation of Plaintiff's dispute and issued a timely amended report.

FOURTH DEFENSE

To the extent Plaintiff sustained any damages, Accurate was not the proximate cause of any such damages.

FOURTH DEFENSE

To the extent Plaintiff failed to mitigate his alleged damages, his recovery, if any, must be reduced accordingly.

FIFTH DEFENSE

Plaintiff's UCL claim is preempted, in whole or in part, by 15 U.S.C. § 1681t.

SIXTH DEFENSE

Plaintiff is not entitled to statutory and/or punitive damages because Accurate engaged in good faith efforts to comply with the FCRA and the ICRAA, Accurate's reading of its obligations under the FCRA and the ICRAA is and was objectively reasonable, and any purported violations were not willful or grossly negligent.

SEVENTH DEFENSE

To the extent Plaintiff purports to assert a claim based on any alleged failure "to obtain Plaintiff's proper written authorization" (as alleged in Paragraphs 36(a) and 46(a) of the Complaint), Accurate states that such claim fails because it may only be asserted against an entity requesting procurement of a consumer report, and Accurate only provided services as a consumer reporting agency and did not itself procure any consumer report regarding Plaintiff.

EIGHTH DEFENSE

To the extent Plaintiff purports to assert a claim based on any alleged failure "to provide Plaintiff with clear, conspicuous, and stand-alone disclosures" (as alleged in Paragraphs 36(b) and 46(b) of the Complaint, Accurate states that such claim fails because it may only be asserted against an entity requesting procurement of a consumer report, and Accurate only provided services as a consumer reporting agency and did not itself procure any consumer report regarding Plaintiff.

NINTH DEFENSE

To the extent Plaintiff purports to assert a claim based on any alleged failure "to provide Plaintiff with a copy of the consumer report and a summary rights before taking adverse action" (as alleged in Paragraphs 36(c) and 46(c) of the Complaint, Accurate states that such claim fails because it may only be asserted against an entity using and requesting procurement of a consumer report, and Accurate only provided services as a consumer reporting agency and did not itself use or procure any consumer report regarding Plaintiff.

TENTH DEFENSE

To the extent Plaintiff purports to assert a claim based on allegedly "taking adverse action against Plaintiff without providing adequate pre-adverse and post-adverse action notice (as alleged in Paragraphs 36(d) and 46(d) of the Complaint), Accurate states that such claim fails because it may only be asserted against an entity using and requesting procurement of a consumer report, and Accurate only provided services as a consumer reporting agency and did not itself use or procure any consumer report regarding Plaintiff.

ELEVENTH DEFENSE

To the extent Plaintiff asserts a claim based on 15 U.S.C. § 1681k(a), such claim fails because Accurate followed both of the separate and independent compliance options of the statute when it: (1) provided contemporaneous notice to Plaintiff that it was

reporting public record information; and (2) maintained strict procedures to insure that any reported information was complete and up to date.

TWELFTH DEFENSE

To the extent Plaintiff purports to assert a claim based on allegedly failing "to properly certify the purpose for which the report was obtained or used" (as alleged in Paragraphs 36(i) and 46(m) of the Complaint), Accurate states that such claim fails because it may only be asserted against an entity using and requesting procurement of a consumer report, and Accurate only provided services as a consumer reporting agency and did not itself use or procure any consumer report regarding Plaintiff.

DATED: September 26, 2025

Respectfully submitted,

SEYFARTH SHAW LLP

By: */s/ Jasmine J. Stanzick*
Jasmine Stanzick
Attorneys for Defendant
ACCURATE BACKGROUND, LLC